IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*

CA(CAA)/44/(CHE)2022

NUMERIFY SOFTWARE INDIA PRIVATE LIMITED
CIN NO: U72200TN2012FTC148094
Old No.228, New No. 302,
FM House, Anna Salai, Teynampet,
Chennai – 600 006

... First Transferor Company / Applicant Company

Along With

EXPERITEST SOFTWARE PRIVATE LIMITED
CIN NO: U74999TN2018FTC148657
Old No.228, New No. 302,
FM House, Anna Salai, Teynampet,
Chennai – 600 006

... Second Transferor Company/Applicant Company

Along With

DIGITAL.Ai SOFTWARE INDIA PRIVATE LIMITED
CIN NO: U72200TN2003PTC050693
No.11o, Mount Poonamallee Road, Porur,
Chennai – 600 116

... Transferee Company/Applicant Company

Order Pronounced on 22nd July 2022

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Justice (Retd) S.RAMATHILAGAM, MEMBER (JUDICIAL)

SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): Pawan Jhabhak, Advocate

COMMON ORDER

Per: **Justice (Retd) S.RAMATHILAGAM, MEMBER (JUDICIAL)**

This is an application filed by the Applicant Companies, namely **NUMERIFY SOFTWARE INDIA PRIVATE LIMITED** (for brevity "First Transferor Company/ Applicant Company") and **EXPERITEST SOFTWARE PRIVATE LIMITED** (for brevity "Second Transferor Company/ Applicant Company") **DIGITAL Ai. SOFTWARE INDIA PRIVATE LIMITED** (for brevity "Transferee Company/ Applicant Company") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also appended as "Annexure – A1" to the CA/CAA/44(CHE) 2022.

2. The Applicant Companies in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
FIRST TRANSFEROR COMPANY/APPLICANT COMPANY	To dispense with	NIL	NIL
SECOND TRANSFEROR COMPANY /APPLICANT COMPANY	To dispense with	NIL	NIL
TRANSFEREE COMPANY/APPLICANT COMPANY	To dispense with	NIL	NIL

3. An affidavit in support of the above application is sworn for and behalf of the applicant Companies has been filed by Mr. Sankaranarayanan Hariharasubramaniam in the capacity of Director / Authorized Representative for the First Transferor Company/ Applicant Company, Second Transferor Company/ Applicant Company and Transferee Company/Applicant Company along with the application and it is also represented that the Registered office of the Applicant Companies are situated within the jurisdiction of Registrar of Companies, Chennai.

4. **NUMERIFY SOFTWARE INDIA PRIVATE LIMITED**
FIRST TRANSFEOR COMPANY/APPLICANT COMPANY

(i) There are 3 (Three) Equity Shareholders and list of shareholders to this effect is placed at page 330 and consent affidavits given by all the Equity Shareholders are placed at Page no.331 to 336 of the typed set filed with the application and sought for dispensation with holding of meeting.

(ii) There is NIL Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 349 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting a meeting does not arise.

(iii) There is NIL Unsecured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 349 of the typed set filed along with

the Application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

5. **EXPERITEST SOFTWARE PRIVATE LIMITED (SECOND TRANSFEROR COMPANY /APPLICANT COMPANY**

(i) There are 2 (Two) Equity Shareholders and the list of shareholders to this effect is placed at Page No. 337 and consent affidavits given by both of them are placed at Page Nos.338 to 341 of the typed set filed with the application and sought for dispensation with holding of meeting.

(ii) There is NIL Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 350 to 352 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting a meeting does not arise.

(iii) There is NIL Unsecured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 350 to 352 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

6. **DIGITAL. AI SOFTWARE INDIA PRIVATE LIMITED (TRANSFEREE COMPANY/ APPLICANT COMPANY)**

(i) There are 2 (Two) Equity Shareholders and the list of shareholders to this effect is placed at Page No. 342 and consent affidavits given by both of them are placed as Page Nos. 343 to 348 of the typed set filed with the

application and sought for dispensation with convening holding and conducting of meeting.

(ii) There is NIL Secured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 353 to 355 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

(iii) There is NIL Unsecured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 353 to 355 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

7. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

8. From the certificate of incorporation filed, it is evident that the First Transferor Company/ Applicant Company is a Private limited company incorporated under the provisions of Companies Act, 1956 on 21.12.2012 in the name and style Logical DB Software India Private Limited in the state of Karnataka, vide Certificate of Incorporation bearing CIN U72200KA2012FTC067351 issued by the Registrar of Companies, Bangalore. Thereafter the

name of the company was changed from Logical DB Software India Private Limited to Numerify Software India Private Limited with effect from 31 December 2013 vide Fresh Certificate of Incorporation Consequent upon Change of Name. Further the Company has changed its Registered Office from the State of Karnataka to Tamil Nadu and received the Certificate of Registration of Regional Director order for Change of State from Registrar of Companies Bangalore, bearing CIN U72200TN2012FTC148094 on 23rd November 2021. The Authorized Share Capital and the Issued, Subscribed and Paid up Share Capital as on 31.03.2021 are as follows;

PARTICULARS	AMOUNT (IN INR)
Authorized Share Capital	
1,00,00,000 Equity Shares of Rs.10 each	10,00,00,000
Total	10,00,00,000
Issued, Subscribed and Paid – up Share capital	
1,00,000 Equity Shares of Rs.10 each	10,00,000
Total	10,00,000

The Registered office address of the First Transferor Company is situated at Old No.228, Old No.302, FM House, Anna Salai, Teynampet, Chennai – 600 006.

9. From the certificate of incorporation filed, it is evident that the Second Transferor Company is a Private limited company incorporated under the provisions of Companies Act, 2013 on

05.10.2018 in the National Capital Territory of India New Delhi, vide Certificate of Incorporation bearing CIN U74999DL2018FTC340112. Further the Company has changed its Registered Office from the National Capital Territory of India New Delhi to Tamil Nadu and received the Certificate of Registration of Regional Director order for Change of State from Registrar of Companies Bangalore, bearing CIN U74999TN2018FTC148657 on 13th October 2021. The Authorized Share Capital and the Issued, Subscribed and Paid up Share Capital of the Second Transferor Company as on 31.03.2021 are as follows;

PARTICULARS	**AMOUNT (IN INR)**
Authorized Share Capital	
1,00,000 Equity Shares of Rs.10 each	10,00,000
Total	10,00,000
Issued, Subscribed and Paid – up Share capital	
10,790 Equity Shares of Rs.10 each	1,07,900
Total	1,07,900

The Registered office address of the Second Transferor Company is situated at Old No.228, Old No.302, FM House, Anna Salai, Teynampet, Chennai – 600 006.

10. From the certificate of incorporation filed, it is evident that the Transferee Company is a Private limited company incorporated under the provisions of Companies Act, 1956 on 11.04.2003 in the State of Tamil Nadu, vide its Corporate Identity Number U72200TN2003PTC050693. The Authorized Share Capital and the

Issued, Subscribed and Paid up Share Capital of the Transferee Company as on 31.03.2021 are as follows;

PARTICULARS	AMOUNT (IN INR)
Authorized Share Capital	
10,000 Equity Shares of Rs.10 each	1,00,000
Total	1,00,000
Issued, Subscribed and Paid – up Share capital	
10,000 Equity Shares of Rs.10 each	1,00,000
Total	1,00,000

The Registered office address of the Transferee Company is situated at No.110, Mount Poonamallee Road, Porur, Chennai – 600 116.

11. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their latest Audited Balance Sheet of the First & Second Transferor Company and Transferee Company/ Applicant Company for the year ended 31.03.2021 is placed at Annexure- A3, A5 & A7 of the Applicant Companies Typed set and the Unaudited Balance Sheet of the First & Second Transferor Company and Transferee Company/ Applicant Company for the year period from 01.04.2021 to 21.02.2022 and the same is placed at Annexure-A3(a), A5(a) & A7(a) of the Applicant Companies Typed set.

12. The Board of Directors of the Applicant Companies vide meeting held on 11th February 2022 has unanimously approved the

proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the applicant companies.

13. The Appointed date as specified in the Scheme is 01.04.2021.

14. The Statutory Auditors of the Applicant Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.

15. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions : -

A. IN RELATION TO THE FIRST TRANSFEROR COMPANY/ APPLICANT COMPANY :

Since it is represented by the First Transferor Company that there are 3 Equity Shareholders in the Company and the consent affidavits obtained from all of them are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since it is represented by the First Transferor Company that there is NIL Secured Creditor in the Company, the necessity

of convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the First Transferor Company that there is NIL Unsecured Creditor in the Company, the necessity of convening a meeting does not arise.

B. IN RELATION TO THE SECOND TRANSFEROR COMPANY :

(i) **With respect to Equity shareholders:**

Since it is represented by the Second Transferor Company that there are 2 Equity Shareholders in the Company and the consent affidavits obtained from both of them are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

(ii) **With respect to Secured Creditors:**

Since it is represented by the Second Transferor Company that there is NIL Secured Creditor in the Company, the necessity of convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Second Transferor Company that there is NIL Unsecured Creditor in the Company, the necessity of convening, holding and conducting a meeting does not arise.

C. IN RELATION TO THE TRANSFEREE COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferee Company that there are 2 Equity Shareholders in the Company and the consent affidavits obtained from both of them are placed on record, the necessity of convening and holding the meeting is ***dispensed with***.

(iii) **With respect to Secured Creditors:**

Since it is represented by the Transferee Company that there is NIL Secured Creditor in the Company, the necessity of convening, holding and conducting a meeting does not arise.

(iv) **With respect to Unsecured Creditors:**

Since it is represented by the Transferee Company that there is NIL Unsecured Creditor in the Company, the necessity of convening, holding and conducting a meeting does not arise.

16. The Applicant Companies shall submit the Company Petition(s) within 14 days from the date of receipt of this order. Accordingly, the Application stands **allowed**.

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

Justice (Retd) S.RAMATHILAGAM
MEMBER (JUDICIAL)

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